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Opinion: Unsafe Skittles? California should ban toxic chemicals in candy

July 13, 2023 | East Bay Times: Web Edition Articles (CA)
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OpenURL Link

Food companies shouldn't be allowed to sell products in the United States made with toxic chemicals while they sell the same products in other countries without them.

Yet that's exactly what happens with certain candies, baked goods and beverages. Manufacturers ship products with safer ingredients to other countries while the inferior versions containing harmful chemicals and additives are sold every day in America.

A bill by Assemblyman Jesse Gabriel, D-Woodland Hills, would prohibit the use of five toxic chemicals found in candies such as Skittles and Sour Patch Kids. Recent scientific evidence has linked certain food additives to serious health problems, including higher risk of cancer, nervous system damage, hyperactivity and other neurological problems.

The risks posed by these five food chemicals — BVO, potassium bromate, propyl paraben, red dye No. 3 and titanium dioxide — are particularly concerning for children, who often consume these candies at higher rates than adults and whose developing bodies are particularly vulnerable to toxic exposure.

The proposal to ban them, Assembly Bill 418, was approved by the California Assembly in May but is now facing fierce industry opposition in the Senate.

Because of the health risks, these chemicals have been banned or severely restricted in the European Union and other countries. To continue selling their products there, food manufacturers replaced the toxic ingredients with readily available alternatives that are safer and, in some cases, more cost effective. However, they have continued using the banned chemicals in products sold in the United States.

After AB 418 passed the Assembly by an overwhelming 54-12 vote, the food industry began blitzing the capital with an army of lobbyists to try to stop the bill in the Senate, arguing that the U.S. Food and Drug Administration has reviewed the safety of these ingredients and will take care of it without California needing to act.

However, the FDA is not required to reexamine additives once they are allowed on the market, so the last time some of these chemicals were assessed was almost 50 years ago.

For years, studies have highlighted the health risks posed by the dangerous additives that would be banned under AB 418. Given the FDA's ongoing failure to act, it's critical for states like California to protect consumers from harmful ingredients.

The industry is also pointing to a recent FDA blog post announcing how the agency intends to take a new approach to reviewing chemicals, which would make California's legislation unnecessary. However, the blog post provided few details, no deadlines and made no commitment for new resources. It merely stated that they would like to do more to review chemicals but would need additional funding and authority from Congress.

The likelihood for that type of action is unclear, and consumers shouldn't have to wait.

Californians deserve to know that the food they purchase is safe to eat. State lawmakers should resist the food industry's misinformation campaign and prohibit companies from selling inferior products containing toxic chemicals in California.

Brian Ronholm is the director of food policy at Consumer Reports. He wrote this commentary for CalMatters.

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- **Citation (apa Style)**
  Ronholm, B. (2023, July 13). Opinion: Unsafe Skittles? California should ban toxic chemicals in candy*East Bay Times: Web Edition Articles (CA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/192C142311CA8508.